

26PR00290 Estate of Jose Luis Guerrero-Real

County: santa-barbara

Division: Decedent's Estate

Department: 4 SM-Cook

Hearing date: 2026-07-27

Motion: Spousal Property Petition

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Tentative Ruling: Estate of Jose Luis Guerrero-Real

Case Number

26PR00290

Case Type

Decedent's Estate

Hearing Date / Time

Mon, 07/27/2026 - 08:30

Nature of Proceedings

Spousal Property Petition

Tentative Ruling

Probate Notes:

The following must be submitted:

Death certificate. Please submit a death certificate as proof of death. (Evid. Code, §412, Hlth. & Saf. Code, § 103550.)

Marriage certificate. Please submit a Marriage Certificate as proof of marriage. (Evid. Code, §412, Hlth. & Saf. Code, § 103550.)

Please note, the check-box-style allegations in the Judicial Council form pleading for Spousal Property Petitions are not specific enough alone to establish the facts of death and marriage without attesting to personal knowledge of the facts that would establish death and marriage. This allegation, by its very nature, raises secondary evidence issues. Instead of making every petitioner file a supplement containing a factual recitation of their personal knowledge of death and marriage, the official declaration of death and marriage by the government entity that produced those documents has far more evidentiary weight than a verified allegation. This is why some courts have local rules requiring the submission of such documents in estate cases. (See Riverside Local Rule 7200; San Bernadino Local Rule 20-615.)

Recorded Title. Since “a person may not transfer an estate or interest in property unless that person is the owner of the estate or interest in question or has the legal authority to act on that owner's behalf” (Restatement (Fourth) of Property § 1.1 (2024)), the Court must have evidence of how title is held:

The nemo dat principle is typically expressed in the full Latin phrase “nemo dat quod non habet,” which roughly translates to “one can only transfer what one owns” or, in the negative, “one cannot transfer property that one does not own.” It is sometimes called the “derivation principle” because the transferee's interest derives from the transferor's.

(Id., at cmnt. a. See also (Miller & Starr (2024) 3 Cal. Real Est. § 8:58 (4th ed.) § 8:58 [“It is axiomatic that a deed cannot convey more than is owned by the grantor. If a deed purports to convey property that is not owned by the grantor, it is ineffective to convey the property, and it is a “wild deed” that can have no effect on title of the person who holds real title to the property.”]; and Romero v. Shih (2024) 15 Cal.5th 680, 689 [citing same in Miller & Starr].)

Supplement/Declaration of Facts. A supplement to the petition alleging facts that should have been alleged in attachment 7:

Facts necessary to determine the county in which the estate of the deceased spouse may be administered. (Date and place of death, domicile/residence at time of death, etc.) (PC § 13652, subd. (a)(1))

Date and place of marriage (Local Rule 1761, subd. (a))

Whether decedent owned any real and personal property on date of marriage, and if so, a description and approximation of values (Ibid.)

For each asset for which a determination that it pass or be confirmed to the surviving spouse, a description of the manner in which the asset was acquired by decedent, including source of funds or loans, title to asset, etc. (Ibid.)

Any additional facts upon which the claim that property is community or quasi-community property is based. (Ibid.)

Because Decedent Died Intestate: 1) facts upon which the petitioner bases the allegations that all or part of the estate of deceased spouse is property passing to the surviving spouse, AND 2) a description of any interest in the community property or quasi-community property, or both, which the petitioner requests the court to confirm to the surviving spouse as belonging to the surviving spouse pursuant to § 100 or 101 (PC § 13651, subd. (a)(3)-(a)(4).)

Proposed Order. A proposed order using Judicial Council Form DE-226 (Local Rule 1724, subd. (b).)

If the documents curing these deficiencies are not processed by 8:00 a.m. on July 24, 2026, it is recommended that the matter be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge Jed Beebe

Dept. 4 SM-Cook

312-C East Cook Street P.O. Box 5369

Santa Maria, CA 93456-5369

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